TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JANUARY 27, 2020
MINUTES

Attachment 1—Staff Report

Present: Barry Wolff, Vice-chair, Beth Santilli, Elliott Barrow, Stephen Wood, Stephen Duke, Megan Stevens.
Absent: David Rubin.
Staff: Michael Robertson, Julia Copeland, Frances Cantwell, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda
B. Approval of Minutes

Mr. Duke moved for approval of the agenda and minutes. Ms. Santilli seconded the motion. All in favor.

Mr. Wolff reviewed the procedures with the public.

C. Public Comment

There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

All correspondence was linked with the agenda.

E. Administration of Oath

Mr. Wolff administered the oath to those speaking.

F. Business

1. **Case A-10-19, Coleman Boulevard at Live Oak Drive, TMS# 517-16-00-066, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign**

ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution. Correspondence

2. **Case V-39-19, Coleman Boulevard at Live Oak Drive, TMS# 517-16-00-066, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
3. **Case A-11-19, Hwy 17N at Ravenel Bridge, TMS# 517-00-00-232, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
4. **Case V-40-19, Hwy 17N at Ravenel Bridge, TMS# 517-00-00-232, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
5. **Case A-12-19, 3110 Hwy 17N, TMS# 598-00-00-098, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
6. **Case V-41-19, 3110 Hwy 17N, TMS# 598-00-00-098, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
7. **Case A-13-19, 462 Wando Park Blvd., TMS# 537-00-00-044, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-**

premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.

8. **Case V-42-19, 462 Wando Park Blvd., TMS# 537-00-00-044, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
9. **Case A-14-19, 1314 Stuart Engals Blvd., TMS# 560-02-00-024, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
10. **Case V-43-19, 1314 Stuart Engals Blvd., TMS# 560-02-00-024, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
11. **Case A-15-19, 1111 McKnight Rd., TMS# 578-00-00-476, Appeal of the Zoning Administrator's Decision to deny a permit to convert a static off-premises sign to a digital sign or install a new digital sign based on Section 156.162 (P) Prohibited Signs. Applicant seeks a permit for digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the First Amendment and/or Fourteenth Amendment of the United States Constitution.**
12. **Case V-44-19, 1111 McKnight Rd., TMS# 578-00-00-476, Request for relief from the strict application of §156.159 to allow an off-premises sign. Applicant seeks a permit to install or convert a static off-premises sign to a digital sign or install a new static or digital sign and contends that sections 156.150, et seq., and the sign ordinance as a whole, violate the**

First Amendment and/or Fourteenth Amendment of the United States Constitution.

- Mr. Robertson stated that there was a request for a 90-day continuance. Ms. Copeland stated that these pertain to constitutional items and should be heard in federal court before coming to the Board for consideration.

- *Mr. Wood moved for approval of a continuance for up to 90 days. Mr. Duke seconded the motion. All in favor.*

13. **Case V-1-2020, 302 Hibben Street., TMS# 517-15-00-085, Request for relief from the strict application of §156.313 (D)(3) and 156.200 et at to allow property subdivision exceeding 40% impervious surface and to reduce required bufferyard and fencing between church and residence. The ordinance requires a maximum impervious surface of 40% with a minimum 15 foot bufferyard and 8-foot stockade fence with masonry piers.**

- Mr. Barrow recused himself due to a conflict of interest.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Lewis Horton reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the request based on the findings that the restrictive covenants will maintain the status quo relative to impervious surface. Mr. Duke seconded the motion. All in favor with Mr. Barrow abstaining.*

14. **Case V-2-2020, 803 McCants Drive., TMS# 532-10-00-130, Request for relief from the strict application of §156.303 (C) to allow maintenance of an existing approximately five (5) foot side yard encroachment. The ordinance requires a minimum ten (10) foot side yard setback.**

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Charles Fitch reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comment.

Mr. Wood stated that this is a older property that was in compliance prior to the changes in the ordinance and suggested that it should be able to maintain the existing encroachment.

▶ *Mr. Wood moved for approval based on findings that it has met criteria and that it has been in existence for over 50 years in its present form in terms of setbacks. Ms. Stevens seconded the motion.*

Mr. Barrow asked if the footprint has changed since 1952. Mr. Fitch answered that there was a renovation in 1999; otherwise, there have not been any changes.

Mr. Wolff called for a vote on the motion. All in favor.

15. Case V-3-2020, 1055 Wharf Indigo Place, TMS# 517-04-00-336, Request for relief from the strict application of §156.303 (C) to allow maintenance of an existing a 4.3-foot side yard setback and extend existing encroachments on the rear for a setback of 25.2 feet, extend front encroachment at 15.6 feet, and extend the side encroachment at 4.3 feet. The ordinance requires setbacks of 30 feet front and rear, and a minimum of 10 feet side with combined side yards of 25 feet.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Stephen Russell stated that the variance is for 1056 Wharf Indigo Place. He reviewed the request with the Board.

There being no comments, Mr. Wolff closed public comments.

Mr. Wood asked if the 4.3 foot side yard setback would be maintained. Mr. Russell answered in the affirmative. Mr. Wood asked if the structure would be closer to the property lines. Mr. Russell answered that the current setbacks would be maintained. Mr. Robertson clarified the current setbacks for the Board.

Mr. Wolff asked if this would be a further encroachment into the setback. Mr. Robertson answered in the negative; however, because the variance is tied to

the site plan and there is the discrepancy from the approval in 1987 and the site plan , staff felt it needed to be clarified.

Ms. Santilli asked if the variance granted in 1987 is essentially being extended. Mr. Robertson answered that the request is to continue the setback variance granted along the side and rear.

- *Ms. Stevens moved for approval based on the findings that the variance was previously granted and the structure would not further encroach into the setback from the approved variance. Mr. Duke seconded the motion. All in favor.*

G. Board Training Session

- Ms. Cantwell reviewed the Board's purview and powers with the Board. She also reviewed the State Ethics Act and Freedom of Information Act with the Board.

Mr. Robertson reviewed changes to the minutes and final orders with the Board.

H. Re-adoption of Bylaws

- *Mr. Wood moved for approval of the bylaws as presented. Mr. Duke seconded the motion. All in favor.*

I. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:01 pm.

Submitted by,
L. Lynes
BOZA01272020